Master Services Agreement - Bluepine Logistics (Executed)

This Master Services Agreement (this "Agreement") is entered into as of November 19, 2022 (the "Effective Date") by and between Novaric Systems, Inc. ("Vendor") and Bluepine Logistics ("Customer"). The parties agree as follows.

1. Definitions

"Platform" means Vendor's proprietary software-as-a-service platform and related tools. "Services" means the subscription and professional services described in an order or statement of work under this Agreement. "Documentation" means Vendor's then-current usage documentation for the Platform.

2. Services

Vendor will provide the Services described in each mutually executed order or statement of work, in material conformance with the Documentation and with reasonable skill and care. Customer will provide the cooperation, access, and information reasonably necessary for Vendor to perform.

3. Fees and Payment

Customer will pay all undisputed fees within 30 days of the date of each invoice. Amounts not paid when due will accrue interest at 1.5% per month or the maximum rate permitted by law, whichever is less. Customer is responsible for all taxes arising from its purchases under this Agreement, excluding taxes on Vendor's net income.

4. Term and Renewal

This Agreement begins on the Effective Date and continues for an initial term of 12 months. Any renewal term requires the parties' written agreement, including as to pricing for the renewal period.

5. Termination

Customer may terminate this Agreement for convenience on 60 days' prior written notice. On such termination, Customer will pay all fees accrued through the effective date of termination. Prepaid fees are non-refundable. Either party may terminate for the other's material breach not cured within 30 days of written notice.

6. Warranties

For 120 days following delivery, Vendor warrants that the Services will perform materially as described in the Documentation. Customer's sole and exclusive remedy for breach is re-performance of the nonconforming Services. VENDOR MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, AND THE SERVICES ARE OTHERWISE PROVIDED "AS IS".

7. Indemnification

Vendor will defend Customer against any third-party claim alleging that the Platform, as provided by Vendor and used as permitted under this Agreement, infringes a United States patent, copyright, or trademark, and will indemnify Customer against amounts finally awarded or agreed in settlement of such claim. Customer will defend and indemnify Vendor against third-party claims arising from Customer's data or its use of the Services in violation of this Agreement.

8. Limitation of Liability

NEITHER PARTY'S TOTAL LIABILITY ARISING FROM OR RELATED TO THIS AGREEMENT WILL EXCEED THE AMOUNTS PAID OR OWED BY CUSTOMER DURING THE 18 MONTHS BEFORE THE EVENT GIVING RISE TO LIABILITY, EXCEPT THAT LIABILITY FOR BREACH OF VENDOR'S DATA PROTECTION OBLIGATIONS MAY REACH 3 TIMES THAT AMOUNT; NEITHER PARTY IS LIABLE FOR CONSEQUENTIAL, INCIDENTAL, SPECIAL, OR INDIRECT DAMAGES. This limitation does not apply to a party's indemnification obligations for third-party intellectual property claims, breach of Section 9 (Confidentiality), Customer's payment obligations, or a party's gross negligence or willful misconduct.

9. Confidentiality

Each party will protect the other party's Confidential Information with at least the care it uses for its own similar information, and not less than reasonable care, and will use it only to perform under this Agreement. Confidential Information excludes information that is public through no fault of the recipient, independently developed, or rightfully received from a third party. These obligations survive for 3 years after termination, and for trade secrets, for as long as trade secret protection lasts.

10. Intellectual Property

Vendor and its licensors retain all right, title, and interest in and to the Platform, background technology, and all generalized knowledge, techniques, and residuals. Notwithstanding the foregoing, Customer will own Work Product identified as such in a statement of work and developed by Vendor solely for Customer, upon payment in full for those Work Product. Customer hereby assigns to Vendor all right, title, and interest in any feedback or suggestions relating to the Platform or Services.

11. Audit

Customer may examine Vendor's records that directly support the fees invoiced under this Agreement no more than once in any 12 month period, on no less than 10 business days' prior notice, during business hours and at Customer's cost. No audit extends to Vendor's systems or to materials of Vendor's other customers. A current SOC 2 Type II report from Vendor discharges this right for the period the report covers.

12. Assignment

Neither party may assign this Agreement without the other party's prior written consent, except that either party may assign this Agreement without consent to an affiliate or in connection with a merger, acquisition, or sale of all or substantially all of its assets. Any other purported assignment is void.

13. Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to conflict of laws principles. The state and federal courts located in Delaware have exclusive jurisdiction over any dispute arising out of this Agreement, and each party consents to their jurisdiction.

14. General

Notices must be in writing and are deemed given when delivered by hand, by certified mail, or by email with confirmation of receipt, to the addresses on the signature page. This Agreement, including its orders and statements of work, is the parties' entire agreement regarding its subject matter and supersedes all prior discussions. If any provision is held unenforceable, the remainder stays in effect. Neither party is liable for delay caused by events beyond its reasonable control.

IN WITNESS WHEREOF, the parties have executed this Agreement as of November 19, 2022.

Novaric Systems, Inc.
By: R. Castellanos
Title: General Counsel

Bluepine Logistics
By: L. Alcaraz
Title: Authorized Signatory